



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT E-11143
(FIRST REVISION)

400 Seventh Street, S.W.
Washington, D.C. 20590

SEP 15 1994

EXPIRATION DATE: May 31, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: United States Rail Services
San Francisco, California.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain Class 3 materials in DOT Specification 111A100W3 tank cars equipped with 1/2" thick full head shields and restencilled to DOT 111S100W3 and provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 179.200-25
5. BASIS. This exemption is based on United States Rail Services' application of April 18, 1994, submitted in accordance with 49 CFR 107.105.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class or Division	Identification Number	Packing Group
Acrylonitrile, inhibited	3	UN 1093	I
Benzene	3	UN 1114	II

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packaging prescribed is a DOT Specification 111A100W3 tank car meeting all DOT requirements (49 CFR Parts 100-199). The tank has been equipped with a 1/2" thick head shield constructed of ASTM A572-50 steel. The Certificates of Construction must be on file with the Associate Administrator for Hazardous Materials Safety prior to offering the cars for transportation.

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- b. MARKING - Tank cars must be marked DOT-E 11143 in four inch letters and numerals on a contrasting background above the DOT specification number.
- c. TESTING - The safety relief valves and tanks must be retested in accordance with the provisions for DOT 111A100W3 tank cars.
- 8. SPECIAL PROVISIONS. Persons who receive packages covered by this exemption may re-offer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such re-offering occurs.
- 9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
- 10. MODAL REQUIREMENTS: None as a condition of this exemption
- 11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS.

- a. The Federal Railroad Administration is to be notified if any unusual incident, such as derailment or exterior tank car danger, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

b. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of the exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA